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It's crunch time for representation in California Legislature

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California's Legislature returns today from a weeklong break with lots to do and not a ton of time.

As lawmakers decide the fate of hundreds of bills and how to spend billions in taxpayer money, their ability to prioritize the needs and desires of voters will matter greatly in the next few months. CalMatters Capitol reporter Sameea Kamal has been writing a series of stories on how successful lawmakers are (or not) when it comes to doing what their constituents want. Catch up with those stories here.

At the top of the Legislature's to-do list:

Budget: With estimates ranging from $38 billion to $73 billion, the state budget deficit is top-of-mind for the Legislature. In March, Senate Democrats announced early budgetary action to reduce the shortfall by about $17 billion, while also agreeing with Newsom's January budget proposal to use $12.2 billion of the state's rainy day fund. According to Senate leaders, the plan would shrink the budget down to a "more manageable" $9 to $24 billion.

Gov. Gavin Newsom and the two elected leaders in the Legislature — Senate President Pro Tem Mike McGuire and Assembly Speaker Robert Rivas — also announced in March that they agreed to seek $12 billion to $18 billion in initial savings ahead of passing the full state budget in June, but with scant details. All three are Democrats.

The Assembly hasn't signed off on the Senate's so-called early action plan yet, and are expected to unveil their own early budget package this month. The governor also plans to revise his budget proposal in May with updated tax revenue data from April. Those numbers will clarify the state's fiscal condition and greatly shape the negotiations in Sacramento to finalize a state spending plan before the new budget year begins July 1.

Bill deadlines: Legislative policy committees have until April 26 to consider fiscal bills that were introduced in the same house. Afterwards, the Assembly and Senate have until May 24 to pass bills that originated from their respective houses. But until then, lawmakers are still unveiling new measures, including:

* Recovering stolen art: In response to a federal appeals court ruling that has allowed a Spanish museum to keep a painting stolen by the Nazis from a Jewish family, Assemblymember Jesse Gabriel, a Democrat from Encino and California Legislative Jewish Caucus co-chairperson, introduced Assembly Bill 2867 to help Californians recover art and other personal goods that were looted during the Holocaust or other acts of genocide.

* Sexual harassment: Assemblymember Mike Fong, a Monterey Park Democrat and chairperson of the Assembly Higher Education Committee, is expected to join other Democratic Assemblymembers at the state Capitol today to promote a series of bills addressing sexual discrimination and harassment at California colleges. The bill package is based on a three-year study that included input from experts, students, faculty and staff from the University of California, California State University and California Community Colleges.

State of the State: And there's still no update on when Gov. Newsom will hold his annual State of the State address. The governor was expected to give the speech on March 18, but a few days beforehand his office said he would postpone the event and work with the Legislature to set a new date. At the time of the announcement, the fate of Newsom's election priority, Proposition 1, was still undecided due to an incredibly tight vote. But the mental health ballot measure has since passed.

CalMatters covers the Capitol: CalMatters has guides to keep track of your lawmakers, explore its record diversity, make your voice heard, understand how state government works and follow the state budget process.

Other Stories You Should Know

Cash aid on chopping block

Speaking of the state budget, proposed cuts to California's primary cash assistance program, CalWORKS, has advocates and some legislators sounding the alarm that thousands of low-income families could be left in even more dire straits.

As Justo Robles of CalMatters' California Divide team explains, Gov. Newsom's January budget proposal included cutting CalWORKS' family stabilization program (which serves 31,000 people) by $126 million over the next two years, and reducing a program that subsidizes jobs for 8,000 low-income recipients a month by $134 million a year.

That includes people like Joy Perrin, who benefited from the family program while living in a van with her two children.

* Perrin, to a budget subcommittee last month: "This program gave me the opportunity to show my children that poverty doesn't have to be our name."

Assemblymember Corey Jackson, a Morena Valley Democrat and chairperson of the Assembly Human Services Committee, told CalMatters that CalWORKS is "one of the most important programs" and that few others "can compete with it from a priorities perspective."

According to the Public Policy Institute of California, 5 million Californians are living in poverty, and the state's poverty rate grew from 11.7% in 2021 to 13.2% in 2023. In a joint letter to legislators, advocacy groups and nonprofits argued that for every dollar a family receives from CalWORKs, the state saves $8 in "child protective services, worsened children and parents' health, and reductions in future education, employment and earnings."

For more on CalWORKS, read Justo's story.

More potential cuts: Shark Lab, a shark monitoring system from Cal State Long Beach is due to run out of funding, reports the Los Angeles Times. Established in 2018, the program uses tracking buoys to enable researchers and lifeguards to monitor the whereabouts of hundreds of sharks in real time. Shark Lab's director says the program, which needs a $7 million infusion to continue, saves coastal communities millions of dollars every year because it helps beaches stay open more often. But state legislators from Long Beach have not requested more funds for the program this year.

Electric bill politics

California's public utilities commission is inviting residents to comment on its latest rate proposal — a flat $24 a month for energy grid maintenance and other "fixed charges" ($6 for low-income customers), offset by lower usage rates. At stake is how much many households will pay to power their homes.

But leading up to a vote as soon as May 9, politicians are already speaking out on the contentious proposal. It would impact customers of large investor-owned utilities: Pacific Gas & Electric, Southern California Edison and San Diego Gas & Electric.

Republicans in the state Senate, who called for scrapping the idea of an income-based "fixed charge" (an earlier plan put the fixed charge at as much as $73 a month for households making $69,000 to $180,000 a year) tried to take credit for the new proposal and said they're cautiously optimistic.

* Senate GOP leader Brian Jones of San Diego, in a statement: "I'm looking deeper into the proposal and studying how it will affect my constituents and ratepayers across the state. Still, I hope this may be a compromise Californians can live with. At the same time, I anticipate that electricity rates will continue to be a huge affordability issue in California, even under this new flat rate proposal."

Meanwhile, a group of legislative Democrats led by Assemblymember Jacqui Irwin of Thousand Oaks are pushing AB 1999 to cap the fixed charge at $10 a month ($5 for low-income customers). On social media, Irwin said Friday that the commission is "completely out of touch" and that "we need to prioritize driving down" overall bills.

The plan unveiled last week is backed by the commission's Public Advocates Office, which seeks to lower ratepayer costs. The commission said that many Californians would see lower bills under the change, which could take effect in late 2025 or early 2026. The commission says that the average customer who uses electricity for home and car — regardless of how much they make or where they live — would save $28 to $44 a month under the new rate structure.

But a coalition of community and environmental groups say the plan would hurt low- and middle-income families.

* Bill Allayaud, director of California government affairs for the Environmental Working Group, in a statement: "The CPUC's proposal is exactly what Californians should be worried about — a big utility tax that is twice the national average and totally uncapped… .Simply put, it is a blank check to profitable utilities that gives them a guaranteed revenue stream for the costly projects that drive expensive electricity rates."

To read more on the proposal, here's the commission's FAQ.

Two wins for housing boosters

From CalMatters housing reporter Ben Christopher:

In the forever struggle between state policymakers, who want to ramp up housing construction, and local governments and activists, who want to control what gets built in their backyards, the forces of state supremacy notched two big wins late last week.

The first was legal, the second electoral.

The court victory:

On Thursday, a state appellate court upheld a state housing law as constitutional.

SB 10 from 2021 allows apartment complexes and townhome clusters to sprout up near public transit stops — skipping over other local development restrictions and eschewing environmental review — as long as a city or county government opts in. So far, precious few have.

Even so, the AIDS Healthcare Foundation — a medical nonprofit that moonlights as an affordable housing provider and statewide rent control advocate — sued. Along with the city of Redondo Beach, they argued that because the housing law could be used to override zoning rules established by local ballot measures, it "eviscerated the fundamental protection" afforded to voters via the initiative.

The three-judge panel disagreed, affirming a lower court decision.

* The ruling: "We hold that the shortage of housing in California addressed by Senate Bill 10 is a matter of

statewide concern."

Score 1 for state power over housing policy.

The campaign win:

On Friday, the campaign behind a proposed constitutional amendment to give local zoning restrictions a leg up over statewide housing laws officially missed its deadline to gather enough signatures to qualify for the November ballot.

No surprise there, said Lafayette City Councilmember Susan Candell, one of the campaign's organizers. The group stopped collecting signatures last fall. That was after Attorney General Rob Bonta's office gave the campaign a "title and summary," which specified that the measure would undermine state affordable housing laws. Candell called that claim "a poison pill."

She said the campaign will try again.

* Candell: "We need to either get a huge bucket of money or we need to build an army and so we're working on both."

In the meantime, score 2 for state preeminence.

Ballot update: Another proposed measure also failed to qualify for November, the Secretary of State's office said Friday. It would have increased the state's target to cut greenhouse gas emissions from 85% to 95% below 1990 levels by 2045.

CalMatters Commentary

Many predict mass layoffs and price increases with the minimum wage hike for California fast food workers, but that's based on an outdated theory that doesn't apply to fast food restaurants, write Michael Reich, chairperson of UC Berkeley's Center on Wage and Employment Dynamics, and Justin Wiltshire, assistant professor of economics at the University of Victoria in British Columbia.

Other things worth your time:

Some stories may require a subscription to read.

Shasta County's hard-right leader barely survives recall // Los Angeles Times

Ex-Windsor Mayor Foppoli won't face sexual assault charges // San Francisco Chronicle

Gov. Newsom requests pardon for award-winning podcaster // Politico

Newsom announces rewards in unsolved killings // Los Angeles Times

The surprising reason CA home insurers won't renew policies // San Francisco Chronicle

Three OC cities leave CA group over Prop. 1 support // Los Angeles Times

CA Democrats seek federal Medi-Cal funding in budget deficit // The Sacramento Bee

Cesar Chavez's family slams RFK Jr.'s presidential campaign // Los Angeles Times

CA oversight agency begins home insurance review // The Sacramento Bee

Hay consumes a vast share of the Colorado River's water // Los Angeles Times

Homeless infants and toddlers largely unenrolled in early ed programs // EdSource

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